



INDIAN POLITY



STATE LEGISLATURE (PART-3)



FRE
CA
S



MODULE – 85

STATE LEGISLATURE

LEGISLATIVE PROCEDURE OF ORDINARY BILLS

BILL IN THE ORIGINATING HOUSE

- 1** An ordinary bill can originate in either House of the state legislature.
- 2** Such a bill can be introduced either by a minister or by any other member.
- 3** The bill passes through three stages in the originating House:
 1. First reading
 2. Second reading
 3. Third reading
- 4** After the bill is passed by the originating House, it is transmitted to the second House for consideration and passage.
- 5** A bill is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments.
- 6** In case of a unicameral legislature, a bill passed by the legislative assembly is sent directly to the governor for his assent.

LEGISLATIVE PROCEDURE OF ORDINARY BILLS

BILL IN THE SECOND HOUSE

- 1** In the second House also, the bill passes through all the three stages, that is, first reading, second reading and third reading.



- 2** When a bill is passed by the legislative assembly and transmitted to the legislative council, the latter has four alternatives before it:

- 1.** It may pass the bill as sent by the assembly (i.e., without amendments);
- 2.** It may pass the bill with amendments and return it to the assembly for reconsideration;
- 3.** It may reject the bill altogether;
- 4.** It may not take any action and thus keep the bill pending.

LEGISLATIVE PROCEDURE OF ORDINARY BILLS

BILL IN THE SECOND HOUSE

3 If the council passes the bill without amendments or the assembly accepts the amendments suggested by the council, the *bill is deemed to have been passed by both the Houses* and the same is sent to the governor for his assent.

4 On the other hand, if the assembly rejects the amendments suggested by the council or the council rejects the bill altogether or the council does not take any action for *three months, then the assembly may pass the bill again and transmit the same to the council.*

5 If the council rejects the bill again or passes the bill with amendments not acceptable to the assembly or does not pass the bill within one month, then *the bill is deemed to have been passed by both the Houses in the form in which it was passed by the assembly for the second time.*



LEGISLATIVE PROCEDURE OF ORDINARY BILLS

ULTIMATE POWER IS WITH ASSEMBLY!

- 1** The ultimate power of passing an ordinary bill is vested in the assembly.
- 2** At the most, the council can detain or *delay the bill for a period of four months*—three months in the first instance and one month in the second instance.
- 3** The Constitution does not provide for the *mechanism of joint sitting* of both the Houses to resolve the disagreement between the two Houses over a bill.
- 4** On the other hand, there is a provision for joint sitting of the Lok Sabha and the Rajya Sabha to resolve a disagreement between the two over an ordinary bill.
- 5** Moreover, when a bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, *the bill ends and becomes dead*.



STATE LEGISLATURE

LEGISLATIVE PROCEDURE OF ORDINARY BILLS

ASSENT OF THE GOVERNOR

- 1** If the governor **gives his assent** to the bill, the bill becomes an Act and is placed on the Statute Book.
- 2** If the governor **withholds his assent** to the bill, the bill ends and does not become an Act.
- 3** If the governor **returns the bill for reconsideration** and if the bill is passed by the House or both the Houses again, with or without amendments, and presented to the governor for his assent, the governor must give his assent to the bill.
- 4** Thus, the governor enjoys only a **suspensive veto**.
- 5** He may also **reserve the bill** for the consideration of the President.



LEGISLATIVE PROCEDURE OF MONEY BILLS

- 1 It can be introduced in the legislative assembly only.
- 2 It can be introduced only on the recommendation of the governor.
- 3 It is considered to be a government bill and can be introduced only by a minister.
- 4 The legislative council has restricted powers with regard to a Money Bill.
- 5 It cannot reject or amend a Money Bill.
- 6 It can only make recommendations and must return the bill to the legislative assembly within 14 days.
- 7 The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.



STATE LEGISLATURE

LEGISLATIVE PROCEDURE OF MONEY BILLS

WHAT HAPPENS IF THE COUNCIL DOES NOT RETURN THE MONEY BILL?



- 3 At the most, the legislative council can detain or delay a money bill for a period of 14 days.

- 1 If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both Houses at the expiry of the said period in the form originally passed by the legislative assembly.

- 2 Thus, the legislative assembly has more powers than legislative council with regard to a money bill.

STATE LEGISLATURE

LEGISLATIVE PROCEDURE OF MONEY BILLS

ASSENT OF THE GOVERNOR TO THE MONEY BILL

- 1 When a money bill is presented to the governor, he may either give his assent, withhold his assent or reserve the bill for presidential assent but **cannot return the bill for reconsideration** of the state legislature.



- 2 Normally, the governor gives his assent to a money bill as it is introduced in the state legislature with his prior permission.
- 3 When a money bill is reserved for consideration of the President, the President may either give his assent to the bill or withhold his assent to the bill but cannot return the bill for reconsideration of the state legislature.

COMPARING LEGISLATIVE PROCEDURE IN THE PARLIAMENT AND STATE LEGISLATURE WITH REGARD TO ORDINARY BILLS

S.NO	PARLIAMENT	STATE LEGISLATURE
1	It can be introduced in either House of the Parliament.	It can be introduced in either House of the state legislature.
2	It can be introduced either by a minister or by a private member.	It can be introduced either by a minister or by private member.
3	It passes through first reading, second reading and third reading in the originating House.	It passes through first reading, second reading and third reading in the originating House.
4	It is deemed to have been passed by the Parliament only when both the Houses have agreed to it, either with or without amendments.	It is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments.
5	A deadlock occurs when one House rejects the bill or proposes amendments that are not acceptable to the other House or does not pass the bill within six months .	A deadlock between the two Houses takes place when the legislative council, after receiving a bill passed by the legislative assembly, rejects the bill or proposes amendments that are not acceptable to the legislative assembly or does not pass the bill within three months .

COMPARING LEGISLATIVE PROCEDURE IN THE PARLIAMENT AND STATE LEGISLATURE WITH REGARD TO ORDINARY BILLS

S.NO	PARLIAMENT	STATE LEGISLATURE
6	The Constitution provides for the mechanism of joint sitting of two Houses of the Parliament to resolve a deadlock between them over the passage of a bill.	No provision of joint sitting.
7	The Lok Sabha cannot override the Rajya Sabha by passing the bill for the second time and vice versa. A joint sitting is the only way to resolve a deadlock between the two Houses.	The legislative assembly can override the legislative council by passing the bill for the second time and not vice versa.
8	The mechanism of joint sitting for resolving a deadlock applies to a bill whether originating in the Lok Sabha or the Rajya Sabha. If a joint sitting is not summoned by the president, the bill ends and becomes dead.	The mechanism of passing the bill for the second time to resolve a deadlock applies to a bill originating in the legislative assembly only.

COMPARING LEGISLATIVE PROCEDURE IN THE PARLIAMENT AND STATE LEGISLATURE WITH REGARD TO MONEY BILLS

S.NO	PARLIAMENT	STATE LEGISLATURE
1	It can be introduced only in the Lok Sabha and not in the Rajya Sabha	It can be introduced only in the legislative assembly and not in the legislative council.
2	It can be introduced only on the recommendation of the president.	It can be introduced only on the recommendation of the governor.
3	It can be introduced only by a minister and not by a private member.	It can be introduced only by a minister and not by a private member.
4	It cannot be rejected or amended by the Rajya Sabha. It should be returned to the Lok Sabha within 14 days, either with or without recommendations.	It cannot be rejected or amended by the legislative council. It should be returned to the legislative assembly within 14 days, either with or without amendments.
5	The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha.	The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.

COMPARING LEGISLATIVE PROCEDURE IN THE PARLIAMENT AND STATE LEGISLATURE WITH REGARD TO MONEY BILLS

S.NO	PARLIAMENT	STATE LEGISLATURE
6	If the Lok Sabha accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form	If the legislative assembly accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form.
7	If the Lok Sabha does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the Lok Sabha without any change.	If the legislative assembly does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the legislative assembly without any change.
8	If the Rajya Sabha does not return the bill to the Lok Sabha within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the Lok Sabha	If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the legislative assembly.

COMPARING LEGISLATIVE PROCEDURE IN THE PARLIAMENT AND STATE LEGISLATURE WITH REGARD TO MONEY BILLS

S.NO	PARLIAMENT	STATE LEGISLATURE
9	The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the Lok Sabha is made to prevail over that of the Rajya Sabha, if the latter does not agree to the bill passed by the former.	The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the legislative assembly is made to prevail over that of legislative council, if the latter does not agree to the bill passed by the former.



STATE LEGISLATURE

POSITION OF LEGISLATIVE COUNCIL

SPHERES WHERE COUNCIL IS EQUAL TO ASSEMBLY

- 1** Introduction and passage of ordinary bills. However, in case of disagreement between the two Houses, the will of the assembly prevails over that of the council.
- 2** Approval of ordinances issued by the governor.
- 3** Selection of ministers including the chief minister. Under the Constitution the, ministers including the chief minister can be members of either House of the state legislature.
- 4** Consideration of the reports of the constitutional bodies like State Finance Commission, SPSC and CAG.
- 5** Enlargement of the jurisdiction of the state public service commission



लोकहितार्थ सत्यनिष्ठा
Dedicated to Truth in Public Interest



STATE LEGISLATURE

POSITION OF LEGISLATIVE COUNCIL

SPHERES WHERE COUNCIL IS UNEQUAL TO ASSEMBLY



- 1** A Money Bill can be introduced only in the assembly and not in the council.
- 2** The council cannot amend or reject a money bill. It should return the bill to the assembly within 14 days, either with recommendations or without recommendations.
- 3** The assembly can either accept or reject all or any of the recommendation of the council. In both the cases, the money bill is deemed to have been passed by the two Houses.

STATE LEGISLATURE

POSITION OF LEGISLATIVE COUNCIL

SPHERES WHERE COUNCIL IS UNEQUAL TO ASSEMBLY



- 4 The final power to decide whether a particular bill is a money bill or not is vested in the Speaker of the assembly.
- 5 The final power of passing an ordinary bill also lies with the assembly. At the most, the council can detain or delay the bill for the period of four months.
- 6 The council can only discuss the budget but cannot vote on the demands for grants.
- 7 The council cannot remove the council of ministers by passing a no-confidence motion.

STATE LEGISLATURE

POSITION OF LEGISLATIVE COUNCIL

SPHERES WHERE COUNCIL IS UNEQUAL TO ASSEMBLY

- | | |
|---|--|
| <p>8 When an ordinary bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead.</p> <p>9 The council does not participate in the election of the president of India and representatives of the state in the Rajya Sabha.</p> | <p>10 The council has no effective say in the ratification of a constitutional amendment bill.</p> <p>11 Finally, the very existence of the council depends on the will of the assembly. The council can be abolished by the Parliament on the recommendation of the assembly.</p> |
|---|--|

From the above, it is clear that the position of the council vis-a-vis the assembly is much weaker than the position of the Rajya Sabha vis-a-vis the Lok Sabha.

POSITION OF LEGISLATIVE COUNCIL Vs RAJYA SABHA

Even though both the council and the Rajya Sabha are second chambers, the Constitution has given the council much lesser importance than the Rajya Sabha due to the following reasons:

- 1** The Rajya Sabha consists of the representatives of the states and thus reflect **the federal element of the polity**. On the other hand, the issue of federal significance does not arise in the case of a council.
- 2** The position accorded to the council is in accordance with the principles of democracy. The **council should yield to the assembly, which is a popular house**.
- 3** The council is **heterogeneously constituted**. It represents different interests and consists of differently elected members and also include some nominated members. On the other hand, the **Rajya Sabha is homogeneously constituted**. It represents only the states and consists of mainly elected members

POSITION OF LEGISLATIVE COUNCIL vs RAJYA SABHA

Even though the council has been given less powers as compared with the assembly, its utility is supported on the following grounds:



- 1** It checks the **hasty, defective, careless and ill-considered legislation** made by the assembly by making provision for revision and thought.
- 2** It **facilitates representation of eminent professionals** and experts who cannot face direct elections. The governor nominates one-sixth members of the council to provide representation to such people.

PRIVILEGES OF STATE LEGISLATURE

- 1** Privileges of a state legislature are a sum of special rights, immunities and exemptions enjoyed by the Houses of state legislature, their committees and their members.
- 2** They are necessary in order to secure the independence and effectiveness of their actions.
- 3** Without these privileges, the Houses can neither maintain their authority, **dignity and honour** nor can protect their members from any obstruction in the **discharge of their legislative responsibilities**.
- 4** The Constitution has also extended the privileges of the state legislature to those persons who are entitled to speak and take part in the proceedings of a House of the state legislature or any of its committees.
- 5** These include **advocate-general of the state and state ministers**.
- 6** It must be clarified here that the privileges of the state legislature do not extend to the governor who is also an integral part of the state legislature.

STATE LEGISLATURE

COLLECTIVE PRIVILEGES

The privileges belonging to each House of the state legislature collectively are:

- 1 It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same.
- 2 It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.
- 3 It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.
- 4 It can punish members as well as outsiders for breach of its privileges or its contempt.
- 5 It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.
- 6 It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.

COLLECTIVE PRIVILEGES

7 The **courts are prohibited** to inquire into the proceedings of a House or its Committees.



8 No person (either a member or outsider) **can be arrested**, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer



STATE LEGISLATURE

INDIVIDUAL PRIVILEGES

The privileges belonging to the members individually are:

1 Freedom from Arrest: They cannot be arrested during the session of the state legislature and 40 days before the beginning and 40 days after the end of such session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.

2 Exemption from Jury Services: They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when the state legislature is in session.

3 Freedom of Speech: They have freedom of speech in the state legislature. No member is liable to any proceedings in any court for anything said or any vote given by him in the state legislature or its committees.



WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

94415 27588